

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 9, 2015

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Mr. Cook, Mr. Johnson, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor (arriving at 6:02 p.m.), Mr Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve Consent Agenda items, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (City Clerk note: Mr. Shanor joined the meeting)

[CA] Minutes from Regular Meeting of the Governing Body on January 26, 2015. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell-Doyle Auto Center) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. In conjunction with an item on the voucher listing, request was made for an updated staff report on the Christensen Overpass Project with Mayor Kaysen stating staff would be contacted to provide the report. Upon request regarding a voucher payable to the Bicycle Station, Mayor Kaysen advised four replacement bicycles were purchased for use by Police Department officers. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Public Hearing for a bar and grill liquor license application filed with the City Clerk's Office, for Wasabi Japanese Steakhouse Inc. d/b/a Wasabi Japanese Grill and Bar, 4620 Grandview Avenue, Suite 205, Cheyenne, Wyoming. Upon inquiry, Carol Intlekofer, City Clerk, verified if the application was approved there would be no more bar and grill liquor licenses available through the City, and reviewed the differences between a bar and grill liquor license vs. a restaurant liquor license. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to the Finance Committee meeting.

Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of approximately 12.75 acres of land situated as a portion of the W½ E½, Section 35, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located

east of Pennsylvania Avenue, between 13th Street and Atlantic Drive). Josh Tetzlaff, Planning and Development office, advised the proposed annexation is pursuant to a petition requesting annexation submitted by the property owner; briefly reviewed the area to be annexed, and stated that requirements and compliance of annexation conditions contained in state statutes had been met. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of approximately 1.78 acres of land situated in Tracts 45 and 46, Dell Range Addition, 4th Filing, Laramie County, Wyoming (located on the northeast corner of N. College Drive and Dell Range Boulevard). Josh Tetzlaff, Planning and Development office, advised the proposed annexation is pursuant to a petition requesting annexation submitted by the property owner; briefly reviewed the area to be annexed, and stated that requirements and compliance of annexation conditions contained in state statutes had been met. Upon inquiry, Mr. Tetzlaff stated his belief that one property owner will be involved in development plans, and that preliminary discussions suggest potential plans may be redevelopment of the property for medical offices. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of approximately 17,268 square feet of land situated in Lots 11 and 12, Block 1, Downey Addition, Laramie County, Wyoming (located north of and adjacent to Land Court, east of Grove Drive). Josh Tetzlaff, Planning and Development office, advised the proposed annexation is pursuant to a petition requesting annexation submitted by the property owner; briefly reviewed the area to be annexed, and stated that requirements and compliance of annexation conditions contained in state statutes had been met. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the NW1/4 of Section 21, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as The Bluffs, 10th Filing Annexation (located between Converse Avenue and Crestridge Drive, north of Foothills Road) (Postponed from January 26, 2015). Kelly Hafner, Benchmark Engineering, agent for the applicant and property owner, United Western Corporation, expressed appreciation to Dan White, City Attorney, for providing feedback to him following discussion at Public Services Committee, and requested a two week postponement to keep the timing for the affiliated final plat and re-zoning actions together and allow for an additional matter to be worked out. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Luna. Mr. Cook, seconded by Mr. Shanor, moved to amend by replacing the current language in Section 5 of the ordinance with the following language: "That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated The Bluffs, 10th Filing, final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.". Upon inquiry regarding purpose of the amendment, Mr. Hafner explained the amendment wording was requested at Committee to keep the annexation, zone change and final plat

all together relative to effective date of the annexation. He explained there was a concern that if the plat didn't get recorded then they would not want the annexation and zone change to be effective. Mr. Hafner advised Mr. White had offered him an opinion since the Committee meeting that he felt the statutes require an annexation ordinance be tied to a date but not tied to filing of a particular document to become effective, and requested the amendment be voted down so further discussion could occur. Upon inquiry, Dan White, City Attorney, advised it is not customary to state an annexation ordinance becomes effective upon the approval of an affiliated final plat. He noted the ordinance is usually effective either when it is published or, in addition, on a date specified in the annexation. Mr. White stated continuing discussions with Mr. Hafner will be held to review a potential way to address the applicant's concern. Upon further inquiry, Mr. White advised he will review statutes to determine whether the amendment wording, which is currently contained in the affiliated re-zoning ordinance, was applicable. Comment followed regarding an annexation action being a separate issue from a final plat or zone change since annexation serves as an initial starting point. Motion to amend failed. Voting "no" -- all members of the governing body. Mr. Shanor moved to postpone to February 23, 2015, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body.

AN ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low Density Residential and LR-2 Low Density Residential, Developing to MR-2 Medium-Density Residential, Developing for Cheyenne, Wyoming, The Bluffs, 10th Filing (located north of and adjacent to Foothills Road between Point Bluff and Mountain Road). Kelly Hafner, Benchmark Engineering, agent for the applicant and property owner, United Western Corporation, requested a two week postponement in order to tie the zone change with the approval time frame of the annexation. Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Mr. Cook moved to postpone to February 23, 2015, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed Use Business Emphasis for Lot 2, Block 1, Triumph Addition, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Grand Harmony Boulevard, west of Center Drive). Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the W1/2 E1/2 of Section 35, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as Chukker Ridge, 2nd Filing Annexation (located east of Pennsylvania Avenue, between 13th Street and Atlantic Avenue) -- referred to Public Services Committee (sponsor -- Mr. Cook).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-2 Agricultural (County) to MR-2 Medium-Density Residential, Developing for a portion of the W1/2 E1/2 of Section 35, T.14N., R.66W., 6th P.M.,

Cheyenne, Wyoming, to be known as Chukker Ridge, 2nd Filing (located east of Pennsylvania Avenue, between 13th Street and Atlantic Drive) -- referred to Public Services Committee (sponsor -- Mr. Cook).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, Tracts 45 and 46, Dell Range Addition, 4th Filing, Laramie County, Wyoming (located at the northeast corner of the intersection of N. College Drive and Dell Range Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Cook).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-Density Residential to MUB Mixed-Use Business Emphasis for Tracts 45 and 46, Dell Range Addition, 4th Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of N. College Drive and Dell Range Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Cook).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, Lots 11 and 12, Block 1, Downey Addition, Laramie County, Wyoming (located north of and adjacent to Land Court, east of Grove Drive) -- referred to Public Services Committee (sponsor -- Mr. Cook).

ORDINANCE - 1ST READING - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-Density Residential to MR-1 Medium-Density Residential, Established for Lots 11 and 12, Block 1, Downey Addition, Cheyenne, Wyoming (located north of and adjacent to Land Court, east of Grove Drive) -- referred to Public Services Committee (sponsor -- Mr. Cook).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 10th Filing, a replat of all of Lots 1-11, Block 9, The Bluffs, 7th Filing; a portion of Lot 1, Block 1, Crestridge; and a portion of the NW¼ of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to Foothills Road between Point Bluff and Mountain Road). Kelly Hafner, Benchmark Engineering, agent for the applicant and property owner, United Western Corporation, requested a two week postponement so the plat action is aligned with the affiliated annexation and zone change. Mr. Cook moved to adopt, seconded by Ms. Williams. Mr. Cook moved to postpone to February 23, 2015, seconded by Ms. Williams. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Capitol Basin Flood Control Project. Motion (per Consent Agenda) carried. (#5651)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) grant agreements for three 2015 CLG grants. Motion (per Consent Agenda) carried. (#5652)

RESOLUTION - Authorizing approval of a corridor plan for a portion of the Cheyenne Business Parkway (located on Campstool Road between Burlington Trail and Christensen Road). Mr. Cook moved to adopt, seconded by Mr. Shanor. Upon inquiry regarding follow-up information as discussed at Public Services Committee, Brandon Cammarata, Planning and Development Director, advised a memo was provided to the governing body outlining additional information regarding reviewing agencies and staff report comments. Mike McBride, BHA Design, advised they are coordinating communication efforts with businesses in the parkway regarding the trail system. Upon inquiry, Mr. Cammarata stated if City Council endorses the plan, it will provide the applicant the opportunity to move forward with a memorandum of understanding for parties involved in implementation of the plan; clarified staff does not intend to propose amendments to the Unified Development Code based upon this project, and noted the concept is similar to creating a Planned Unit Development (PUD) but that a PUD is far more comprehensive. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Roybal and Ms. Williams voting "no". (#5653)

[CA] RESOLUTION - Authorizing a special use permit for a creative sign program for a portion of the Cheyenne Business Parkway (located on Campstool Road between Burlington Trail and Christensen Road). Motion (per Consent Agenda) carried. (#5654)

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by Outside User's Agreement, with Brentag Pacific, Inc., Lots 1A and 1B, Swan Ranch Rail Park, 1st Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Repealing Resolution No. 4643 and adopting the Neighborhood Traffic Management Program (NTMP) - 2015 -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Laramie County Fire District #3 Fire Tender Project to be submitted to the State Loan and Investment Board for 2015-2016 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Niobrara Energy Park, 2nd Filing, a replat of Lot 3, Block 1, Niobrara Energy Park, 2nd Filing, Laramie County, Wyoming (located north of and adjacent to East Allison Road, west of South College Drive) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] Professional Services Contract between the City of Cheyenne and Wyoming Business Council on behalf of Cheyenne Downtown Development Authority/Main Street for downtown revitalization project (Wyoming Business Council Grant). Motion (per Consent Agenda) carried. (#6286)

[CA] Lease Agreement between the City of Cheyenne and the Girl Scouts of Montana and Wyoming, a Montana corporation, for 45.93 acres of City-owned real property, located near the

former Roundtop Water Treatment Facility, to be used for Girl Scout purposes -- referred to Finance Committee.

[CA] Amendment No. 3 to Contract No. 4173 between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation, adding electronic citations interface and drivers license reader interface (E-Citation Implementation Grant, 1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$28,250.00). (#4173)

[CA] Contract Modification No. 1 to Contract No. 6014 between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Inc., Cheyenne, Wyoming, for the Fiscal Year 2013 City Overlay to reduce retainage (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#6014)

[CA] Contract Modification No. 1 to Contract No. 6101 between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, Cheyenne, Wyoming, for the Fiscal Year 2014 Miscellaneous Concrete and Street Repairs Project to reduce retainage (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#6101)

[CA] Contract Modification No. 2 to Contract No. 6131 between the City of Cheyenne, Public Works Department, and Monument Builders, Inc., Cheyenne, Wyoming, for the Household Hazardous Waste Facility, Sitework, and Underground Storage Tank Replacement Project (State and local grants) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6271 between the City of Cheyenne, Forestry Division, and Western Tree Care, Inc., Cheyenne, Wyoming, to remove additional trees affiliated with the Cemetery Complex Tree Removal Project -- referred to Finance Committee.

[CA] Contract Modification No. 4 to Contract No. 5781 between the City of Cheyenne and Ayres Associates for additional strategic grant writing services and associated preliminary engineering design required by grants to enable securing additional grant funding for the Cheyenne West Edge (Lower Capitol Basin) Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Amendment No. 5 to Contract No. 4563 between the City of Cheyenne and William A. Gross, Managing Partner, Wyoming Cattle Company, LLC, for extension of grazing lease on the Belvoir Ranch -- referred to Finance Committee.

[CA] Consideration of Bid #R-19-15 and #R-20-15 for furnishing one new triple combination pumper truck and affiliated loose equipment for the Cheyenne Fire and Rescue Department (SLIB grant funds) -- referred to Finance Committee.

Appointments of Brent Groesbeck to the Contractor Licensing Board, and Alane M. West to the Cheyenne Downtown Development Authority Board (DDA). Mr. Luna moved to approve, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body with

the exception of Mayor Kaysen who did not vote (Mayoral appointees).

Announcement was made of a Public Hearing to be held Monday, February 23, 2015 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk's Office.

Announcement was made of the Re-Appointment of James W. Hearne to the City of Cheyenne, Wyoming - Laramie County, State of Wyoming Joint Powers Board for Frontier Park Improvements, to be confirmed February 23, 2015.

Announcement was made that due to the Presidents' Day Holiday on Monday, February 16, 2015, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 17, 2015 at 11:00 a.m. and Public Services Committee will meet Wednesday, February 18, 2015 at Noon.

Under other business:

Upon inquiry regarding a recent financial report involving the separation of the Planning and Development offices, Mayor Kaysen advised a meeting with the private sector and stakeholders would be scheduled in the near future, noting budget preparation for the next fiscal year is affiliated with the separation.

Upon inquiry regarding the court case status of the Employee Investment Study, Dan White, City Attorney, briefly reviewed the case filed against the City by the Wyoming Tribune-Eagle; time lines involving court filings, briefings and oral arguments, and advised an opinion from the District Court judge has not yet been received.

Dan White, City Attorney, noted the Public Meetings Act allows the governing body to meet in executive session for considering or tendering offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union. He requested the governing body move into executive session to receive an explanation and summary from himself and Lois Huff, City Treasurer, regarding proposals to be submitted to the union at the meeting set for February 11, 2015 when the initial negotiation session begins. Mr. Shanor moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Following a brief recess, executive session convened at 6:56 p.m.)

The meeting was officially adjourned at 7:54 p.m. following conclusion of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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